

23SMCV03341 23SMCV03341

County: los-angeles
Division: Civil Law and Motion
Department: 207
Hearing date: 2026-08-14
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Case Number: 23SMCV03341 Hearing Date: August 14, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 14, 2026

CASE NUMBER

23SMCV03341

MOTION

Post Undertaking

MOVING PARTY

Defendant Sara D. Tarvaran

OPPOSING PARTY

none

MOTION

This case arises from a collision between an automobile and a pedestrian. On July 20, 2023, Plaintiff Mary Agnes Klock ("Plaintiff") filed suit against Defendant Sara D. Tarvaran ("Defendant") alleging a single cause of action for general negligence.

Defendant now moves for an order requiring Plaintiff to post an undertaking pursuant to Code of Civil Procedure section 1030. The motion is unopposed.

ANALYSIS

1.

UNDERTAKING

"When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking." (Code Civ. Proc., § 1030, subd. (a).) The plaintiff is not required to file an undertaking unless "there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding." (Code Civ. Proc., § 1030, subd. (b).) The defendant is not required to show that there is no possibility that the plaintiff can prevail at trial, but rather must demonstrate only that it is reasonably possible that the defendant will prevail. (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432-1433.) The defendant must also submit an affidavit stating the nature and amount of costs and attorney's fees the defendant has incurred, and expects to incur throughout the remainder of the proceedings. (Code Civ. Proc., § 1030, subd. (b).)

"If the court, after hearing, determines that the grounds for the motion have been established, the court shall order that the plaintiff file the undertaking in an amount specified in the court's order as security for costs and attorney's fees." (Code Civ. Proc., § 1030, subd. (c).) If the court grants the motion and the plaintiff fails to file the undertaking within the time allowed, the court must dismiss the plaintiff's action or special proceeding as to the defendant in whose favor the order requiring the undertaking was made. (Code Civ. Proc., § 1030, subd. (d).)

Defendants move for an order requiring Plaintiff to post an undertaking in the amount of \$32,409.43, on the grounds that Plaintiff resides in Plano, Texas and there is a reasonable

possibility that Defendant will prevail in this action. The motion is unopposed.

a.

Out-of-State Plaintiff

In support of Defendant's claim that Plaintiff resides out of the state, Defendant advances the attorney Declaration of Myrna Van, which provides:

5. Plaintiff resides in Plano, Texas. Plaintiff has resided in Texas since approximately June 15, 1999. A true and correct copy of [Plaintiff's discovery response/deposition testimony/other document confirming Plaintiff's Texas residence] is attached as Exhibit B.

(Van Decl. ¶ 5.) Exhibit B is a copy of Plaintiff's responses to Form Interrogatories. Plaintiff's response to Form Interrogatory No. 2.5 indicates Plaintiff has resided at her current residence in Plano, Texas since June 1999.

Thus, Defendant has demonstrated that Plaintiff resides out of California in Plano, Texas.

b.

Reasonable Possibility of Prevailing

Plaintiff's Complaint alleges a single cause of action for negligence, arising from an automobile-on-pedestrian collision in the parking lot of a McDonald's restaurant on Santa Monica Boulevard.

The elements for a negligence cause of action are duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

On September 24, 2025, the Court entered an order deeming admitted all seventeen of Defendant's Requests for Admission (Set One). (Minute Order, Sept. 24, 2025.) Plaintiff has not sought or obtained relief from that order. (Van

Decl. ¶ 10.)

As such, Plaintiff has admitted:

.

Defendant's car did not make contact with Plaintiff
or Plaintiff's body

.

Plaintiff did not suffer any physical injuries as a
result of the subject incident

.

Plaintiff did not suffer any emotional distress as a
result of the subject incident

.

Plaintiff did not fall to the ground as a result of
the alleged impact

.

Videos produced by the Los Angeles Police Department
do not depict a picture of any alleged contact between Plaintiff and
Defendant's car

.

Plaintiff did not call an ambulance at the scene of
the subject incident

.

Plaintiff did not have back pain following the
subject incident

.

Plaintiff did not have hip pain following the
subject incident

.

Plaintiff was not advised by any healthcare provider
to seek future treatment for Plaintiff's alleged back injuries attributed to

the subject incident

.

Plaintiff did not suffer wage loss as a result of the subject incident

.

Plaintiff did not suffer a loss of earning capacity as a result of the subject incident

.

Plaintiff is not claiming any psychological impact from the subject incident

.

Plaintiff is not claiming that the subject incident caused Plaintiff any neurological defects

.

Plaintiff has not been diagnosed with any psychological condition as a result of the subject incident

(Ex. C to Van Decl.)

Therefore,
Plaintiff has demonstrated a reasonable possibility of prevailing on the elements of causation and damages.

c.

Reasonableness of Undertaking Amount

Defendant seeks an undertaking in the amount of \$32,409.43. In support, Defendant advances the attorney declaration of Myrna Van, which contains a chart outlining the fees already incurred and estimates of fees expected to be incurred through trial, totaling the requested \$32,409.43. (Van Decl. ¶ 13.)

Therefore, Defendant has demonstrated that the amount requested is the amount reasonably likely to be incurred to litigate this matter through trial, and Plaintiff has not opposed the motion to

demonstrate otherwise.

CONCLUSION AND ORDER

Finding Defendant has demonstrated that Plaintiff resides out of the state in Plano, Texas and Defendant has demonstrated a reasonable possibility of prevailing on the elements of causation and damages, by virtue of the Requests for Admission the Court deemed admitted on September 24, 2025, the Court grants Defendant's unopposed motion requiring Plaintiff to post an undertaking in the amount of \$32,409.43 pursuant to Code of Civil procedure section 1030.

Further, the Court orders Plaintiff to post an undertaking in the amount of \$32,409.43 within thirty (30) days after service of the Court's order, pursuant to Code of Civil Procedure, section 1030, subdivision (d).

Further, the Court will enter the proposed Order lodged on July 14, 2026 in conformity with the ruling.

Defendant shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: August 14, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court